

The Orissa Working Journalists Welfare Fund Rules, 2006

Source: <https://indiankanoon.org/doc/189554473/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Odisha - Act

The Orissa Working Journalists Welfare Fund Rules, 2006

ODISHA

India

The Orissa Working Journalists Welfare Fund Rules, 2006

Rule THE-ORISSA-WORKING-JOURNALISTS-WELFARE-FUND-RULES-2006 of 2006

Published on 7 March 2006

Commenced on 7 March 2006

[This is the version of this document from 7 March 2006.]

[Note: The original publication document is not available and this content could not be verified.]

The Orissa Working Journalists Welfare Fund Rules, 2006

Published vide Notification No. 7590-IPR, dated 7th March 2006, Orissa Gazette Extraordinary No. 313 dated 13.3.2006

Government of Orissa

Information & Public Relations Department

Resolution

Whereas it is considered expedient to provide for the constitution of a Welfare Fund for the benefit of the Indigent Working Journalists and retired Working Journalists in the State of Orissa and to provide for financial assistance to such Working Journalists, retired Working Journalists and their dependants as hereinafter provided.

Now, therefore, the Government of Orissa is pleased to make the following rules regulating the constitution and administration of the said fund including the procedure to be adopted for providing financial assistance, namely -

1.

(1)

These rules may be called the Orissa Working Journalists Welfare Fund Rules, 2006.

(2)

They shall come into force on the date of their publication in the Orissa Gazette.

2.

In these rules, unless there is any thing repugnant in the subject or context,-

(a)

"Committee" means the Committee constituted for the purpose of administration of the Fund under Rule 9;

(b)

"Fund" means the Orissa Working Journalists Welfare Fund;

(c)

"Working Journalist" means the Working Journalists as defined in Section 2(f) of the Working Journalists and other Newspaper Employees (Conditions of Service) and Miscellaneous Provisions Act, 1955;

(d)

"Retired Working Journalist" means a Working Journalist who has retired after having rendered a minimum service of ten years as a Working Journalist and has attained the age of 58 years and has not taken up any other gainful employment after such retirement.

3.

There shall be constituted a Fund called the Orissa Working Journalists Welfare Fund which shall consist of contributions made by the Government of Orissa from time to time towards the corpus of the Fund. The Committee shall be competent to accept contributions from other sources for the corpus of the Fund subject to the condition that such contributors accept the scheme envisaged under these Rules. The corpus of the Fund shall be invested in a fixed deposit in any nationalised Bank in such a manner as to be most beneficial to the Fund in the circumstances.

4.

Financial assistance under these rules shall be paid out of the interest accruing to the corpus of the Orissa Working Journalists Welfare Fund and no part of the corpus of the Fund shall be utilized for payment of any assistance under these Rules. Interest accruing to the corpus shall be deposited in a Savings Bank Account in a Nationalised Bank. The Committee shall be competent to decide whether any part of the interest remaining unutilised shall be transferred to the corpus of the Fund.

5.

Subject to the other provisions of these rules, a Working Journalist shall be eligible for consideration for sanction of assistance under these rules if his annual income from all sources taken together does not exceed Rs.50,000 and a retired Working Journalist shall be eligible for consideration for sanction of assistance under these rules if his annual income from all sources taken together does not exceed Rs.25,000.

6.

All assistance under these rules are ex gratia in nature and there shall be no legal right to assistance from the fund/funds constituted under these rules.

7.

(1)

The Committee may sanction financial assistance out of the interest accruing to the corpus of the Fund in the following cases -

(i)

In the event of death of a Working Journalist or a retired Working Journalist, a fixed sum of money as determined by the Committee may be paid to the widow and in the event of the deceased not being survived by his widow, equally to the minor children. In the event the deceased was not married or is not survived by his widow or children, such ex gratia payment may be sanctioned in favour of his father or mother.

(ii)

In the event of death of a Working Journalist, in addition to assistance provided for under clause (i) the Committee may sanction recurring educational assistance in favour of the children of deceased:

Provided that the educational assistance shall be limited to two children and shall be paid at the rate not exceeding Rs.150 per month for education up to Matriculation stage and at the rate not exceeding Rs.250 per month for education

in the Post-Matriculation stage:

Provided further that educational assistance will be available till the concerned child attains the age of 21 years and that sanction of the assistance from year to year shall be subject to the condition that the child has been continuing studies as a regular student of a recognized educational institution and has shown satisfactory progress.

Note. - The Committee may call for such certificates as maybe necessary for satisfying itself about fulfillment of conditions for sanction of assistance.

(iii)

In the event of permanent incapacitation of a Working Journalist on account of accident, disease or any other reason, the Committee may sanction a lump sum grant to the Working Journalist so incapacitated and in addition, educational assistance to the children as provided under clause (ii).

Note. - "Permanent Incapacitation" for the purposes of this clause means incapacitation which renders the Working Journalist wholly unfit for working as such.

(iv)

The Committee may sanction financial assistance for treatment of Heart, Kidney, Cancer and any other critical illness suffered by a Working Journalist or a retired Working Journalist or any of the following member of his family provided that such member of the family is solely dependent on the said Working Journalist or retired Working journalist.

(a)

husband/wife

(b)

son and or daughter or an adopted son or daughter. Assistance shall be limited to illness requiring hospitalization. Assistance under this clause shall not include cost of appliances except those which are life saving appliances.

(2)

The Committee shall keep in view the amount available as interest on the corpus of the Fund while sanctioning assistance for various purposes specified in sub-rule (1).

8.

Financial assistance sanctioned under these rules is liable to be cancelled if it is found at any time that the assistance was sanctioned on the basis of incorrect facts or that the financial condition of the beneficiary/beneficiaries has improved or that the financial assistance was obtained by suppression or misrepresentation of facts:

Provided that the Committee shall give an opportunity to the beneficiary to present his or her case against the proposed action before withdrawing or cancelling any assistance-

9.

There shall be a Committee consisting of the following to administer the Fund, namely:-

(i)

Minister or Minister of State in-charge of Information & Public Relations

..

Chairman

(ii)

Commissioner-cum-Secretary, Information & Public Relations Department

..

Vice-Chairman

(iii)

Director, Information & Public Relations

..

Secretary-Convenor

(iv)

5 Journalists of eminence to be nominated by Government

..

Member

(v)

Joint Director/Dy. Director, Information & Public
Relations Department

..

Member

10.

The Committee so constituted shall function for a period of two years from the date of its constitution.

11.

Application for the grant of financial assistance under these rules shall be submitted to the Convenor of the Committee in the form prescribed in Schedule-I, which shall be accompanied by a report in the form prescribed in Schedule-II.

12.

In sanctioning assistance, the Committee shall take into consideration the financial condition of the applicant and the assistance likely to be received by him/her through his/her employer or from other sources. The Committee may also decide as to the certificates and other evidences which shall be called for from the applicant before sanction of assistance.

13.

All the applications shall be scrutinised by the Committee. The Committee, after satisfying itself of the eligibility or otherwise of the applicant may in consistent with the provisions of the rules, make specific recommendation to the Vice-Chairman who shall thereafter take appropriate action for complying with the recommendation of the Committee.

14.

Financial assistance shall be provided from the date of issue of the order sanctioning the assistance, unless otherwise specified therein.

15.

(1)

Matters incidental to the scheme covered by these rules which are not specifically provided for in these rules shall be regulated in such manner as may be decided by the Committee.

(2)

In addition to the conditions prescribed for the consideration of applications for assistance, the Committee may also with prior approval of Government lay down any other condition or guidelines for sanction of assistance subject to the condition that such condition or guidelines are not inconsistent with these rules.

16.

The Chairman of the Committee may sanction suitable interim financial assistance from the Fund to meet emergent needs in most deserving cases in anticipation of the approval of the Committee. The Committee may however prescribe the maximum limit that can be sanctioned by the Chairman in such emergent.

17.

(1)

The Fund shall be operated by the Secretary-Convenor of the Committee who shall maintain a separate account for the same.

(2)

The accounts of the Fund shall be subjected to annual audit by the Local Fund Audit Organisation of the Finance Department, Government of Orissa and the audit report shall be placed before the Committee.

18.

Orissa Working Journalists Welfare Fund Rules, 1989 and subsequent amendments made thereof are hereby repealed, provided that notwithstanding such repeal anything done or any action taken under the rules, so repealed shall be deemed to have been done or taken under these rules.

I

Form of Application

To

The Director,

Information & Public Relations,

Government of Orissa, Bhubaneswar.

1. Name of the applicant in full (in capital letters) :

2. Age and date of birth :

3. Full address :

4. In the case of living journalists-

(a)

Details regarding the service of the applicant as a journalist :

(b)

Purpose for which assistance is sought :

(c)

Documentary evidence in support of the illness, if any :

5. In the case of families dependant on the deceased journalist-

(a)

Details regarding the service of the deceased journalist :

(b)

The applicant's relationship with the deceased journalist (whether widow/widower/son/unmarried daughter/father/mother) :

6. Details of other source and financial assistance received, if any, for the purpose mentioned of serial 4(b) :

(1)

PM/CM Relief Fund Rs. _____

(2)

From employer Rs. _____

(3)

Any other source Rs. _____

7. I hereby certify that-

(a)

My income from all sources is Rs.....per annum.

(b)

All the above particulars furnished by me are true to the best of my knowledge.

Place :

Date :

Signature of the Applicant

N.B - The applicant shall enclose the income certificate from competent authority to the application.

II

Report of President/Secretary of the Utkal Journalist Association/ Orissa Union of Journalists/District Information and Public Relations Officer

I have made necessary enquiries regarding the statements in the application form of Shri/Smt..... and submit the following report:-

1. The applicant comes under the scheme for giving financial assistance to working journalists/dependants in distress.

2. The applicant is the widow/widower/son/unmarried daughter/father/ mother of the late.....

3. The age of the applicant as verified from the certificates of date of birth furnished by the applicant or other reliable records (to be specified) is..... years.....

4. The total income of the claimant is Rs.....per annum.

5. The particulars furnished by the applicant are correct.

6. Other remarks, if any.

Place :

Date :

Signature

Name and Address with office seal

No. 25096-NP-5/2009-IPR

Government of Orissa

Information & Public Relations Department

Resolution

The 15th September 2009

In pursuance of Rule 9 of the Orissa Working Journalists Welfare Fund Rules, 2006, the State Government have been pleased to constitute a Committee consisting of the following to administer the fund:-

(i)

Minister, Information & P. Rs.

..

Chairman

(ii)

Commissioner-cum-Secretary, Information & P.R. Department

..

Vice-Chairman

(iii)

Director, Information & Public Relations

..

Secretary-Convenor

(iv)

Shri Rayashree Upendra Prasad, President, Orissa Union of Working Journalists

..

Member

(v)

Shri S.S. Mohapatra, President, Orissa Journalists Association

..

Member

(vi)

Shri M. Das, President, Utkal Journalists Association

..

Member

(vii)

Shri Nimain Ch. Mohanty, President, Orissa Union of Journalists

..

Member

(viii)

Shri Sarada Prasanna Nanda, Resident Editor, The Pioneer

..

Member

(ix)

Deputy Director (Print Media), Information & Public Relations

..

Member

The Headquarters of the Committee will be at Bhubaneswar.

The Committee so constituted shall function for a period of 2 years from the date of its constitution.

Related AI tags, queries and research notes

Translation